actually dirty their hands with the nitty-gritty of negotiating, in stark contrast to democratic leaders. China's preferred tactic is to discuss any potentially contentious subject at the 'working' level, in order to let the unpleasantness play itself out and to reach a 'consensus' if possible. If that is not possible, the Chinese side at least gets first-hand knowledge of the Indian interlocutor's thought process, and is able to prepare their leadership with the right response in case it is taken to the higher level. This is rather different from the Indian leadership, which has always reserved the right to raise an issue directly at the higher level. This is a cultural issue and the Indian side might wish to recognize that it may not lead to desired results. While the prerogative to raise any issue at the highest levels is a legitimate tactic of diplomacy, it can only be used in exceptional cases in China, and only to make a point or to directly sensitize the Chinese leaders, and without any expectation of a desirable outcome.

The Process of Negotiation

It is a Chinese tradition from imperial times to establish a hierarchy in the negotiations, in order to show up the opposite party as the lesser party and to talk down to it. Former National Security Advisor Shivshankar Menon says that, so far as China is concerned, negotiations are not between equals. Instead, they reflect the balance of power and advantage between adversarial parties. [4] The Chinese use 'legalized hegemony' as a means of establishing the hierarchy with India. Legalized hegemony is the concept of a state enjoying superior status by virtue of being recognized as special in international law, which is then used as a political fact in negotiations to make clear that the opposite side is a minor or subordinate power. [5] Thus, China will always refer to itself as a Great Power, because it is a